



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 3, 2022

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202008197 regarding Lieutenant Duvaughn Clacken, Tax No. 941564 (DADS No. 2022-25757)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Lieutenant Clacken's decision to send an arrested individual to the hospital for a psychiatric evaluation was not an abuse of his authority, but rather, a prudent exercise of his judgement and responsibility.

Lieutenant Clacken was present to witness the arrestee's irrational behavior at the time of the incident and made a reasonable decision based on all of the available information. The definition of a "prisoner requiring psychiatric treatment" in Patrol Guide section 210-04 includes consideration of irrational behavior, and any such determination should be given substantial deference, as the benefits of preventing harm to or by a prisoner far outweigh the inconvenience imposed by a psychiatric evaluation. The information regarding the arrestee's irrational behavior provided by other officers, as well as Lieutenant Clacken, provided sufficient justification for his decision, despite his not having recalled all of the

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particular details of the incident at his interview with CCRB, which took place over a year later.

Therefore, based on the foregoing, the Police Commissioner has determined that Lieutenant Clacken will receive no disciplinary action for the allegation that he forcibly removed an individual to the hospital.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read "Lourdes Soto", written over a large, loopy flourish that extends from the "Yours truly," line.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office